

26AVCV00230 26AVCV00230

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 26AVCV00230 Hearing Date: July 9, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

KISAI FRANCO, an individual, and
LUIS ARTEAGA, an individual,

Plaintiffs,

v.

FARMERS INSURANCE EXCHANGE,

Defendant.

Case Number 26AVCV00230

[TENTATIVE]

STATEMENT OF
DECISION

Date
of Hearing: July 9, 2026

Dept. A-14

Judge William H.

Forman

I.

Background

This is a breach of contract case arising from the denial of Plaintiffs' insurance claim for damage to their property.

On February 13, 2026, Plaintiffs Kisai Franco (Franco) and Luis Arteaga (Arteaga) (together Plaintiffs) filed their complaint against Defendant Farmers Insurance Exchange (Defendant), asserting two causes of action for (1) breach of contract and (2) breach of the implied covenant of good faith and fair dealing.

Specifically, Plaintiffs allege that on February 14, 2025, wind caused damage to the room of Plaintiffs' residential real property (Property), which caused rainwater to leak into the Property, resulting in significant water damage to the Property and contents. (Compl., ¶ 7.) Plaintiffs allege that they were entitled to coverage for all covered losses at the Property pursuant to the terms of their insurance policy with Defendant. (Compl., ¶ 8.) Plaintiffs state they timely reported the incident to Defendant and engaged in mitigation efforts, but Defendant maliciously and in bad faith denied the claim, forcing Plaintiffs to expend their own funds to repair damages to the Property which were covered under the insurance policy. (Compl., ¶ 9, 14-16.)

On May 14, 2026, Defendant filed its motions to deem requests for admission admitted as to both Franco and Arteaga.

On June 29, 2026, Arteaga filed his opposition.

On July 1, 2026, Defendant filed its reply to Arteaga's opposition. Defendant also filed a notice of non-opposition as to Franco. That same day, Franco filed his opposition to Defendant's motion.

II.

Preliminary

Procedural Issues

Timeliness of Plaintiffs' Oppositions

– All papers opposing a motion must be filed nine court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Accordingly, Arteaga's and Franco's oppositions were due no later than June 24, 2026, and both oppositions are untimely.

However,

in the interests of justice and in the absence of prejudice to Defendant, the Court exercises its discretion to consider the oppositions on the merits.

III.

Legal

Standard

Standard for Motion to Deem Matters Admitted – A party must respond to requests for admission within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) When a party fails to timely respond, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted and request monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court must make this order “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

An untimely responding party waives all objections, including privilege, unless they subsequently serve responses in substantial compliance with the Civil Discovery Act, and they demonstrate their failure is the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subd. (a).) ∴

IV.

Discussion

Application – Defendant

requests an order deeming the facts specified in Defendant's first set of requests for admissions to Plaintiffs Franco and Arteaga admitted pursuant to California Code of Civil Procedure section 2033.280 due to both Plaintiffs failing to timely serve responses. (Memo re Arteaga, p. 1:21-24; Memo re Franco, p. 1:21-24.)

a.

Defendant's Motions to Deem Matters Admitted

On March 23, 2026, Defendant served each Plaintiff individually with a request for admission of 20 matters, with Plaintiffs' deadline to respond being April 24, 2026. (Warner Decl. re Arteaga, ¶ 3; Warner Decl. re Franco, ¶ 3.) Plaintiffs each requested an extension, and Defendant agreed to a new deadline of May 8, 2026. (Ibid.) However, both Arteaga and Franco purportedly failed to provide responses to the request for admissions on or before May 8, 2026, and Defendant filed the present motion to deem all 20 matters admitted as to each Plaintiff. (Id at ¶ 4.)

In opposition, Arteaga contends

that Defendant's motion is now moot, as he served verified responses to Defendant's request for admissions on May 19, 2026. (Arteaga Opp., p. 2:9-12; Abdolhosseini Decl. re Arteaga, ¶ 4, Ex. A.) Franco argues the same, contending he served his verified discovery responses on May 13, 2026. (Franco Opp., p. 3:6-8; Abdolhosseini Decl. re Franco, ¶ 3, Ex. A.)

In reply to Arteaga's opposition,

Defendant argues that while Arteaga claims he served his verified responses on May 19, 2026, and the proof of service attached to the verified responses provided by Arteaga reflects the same, Defendant was not actually served with the responses until June 1, 2026, after Defendant had filed and served the present motion. (Reply, p. 2:19-22.) Defendant also provides the service email of the verified responses from Plaintiffs' counsel, dated June 1, 2026. (Warner Decl., re Arteaga, ¶ 5, Ex. B.) Defendant has not yet filed a reply to Franco's

untimely opposition.

Here, there is no dispute that

Arteaga has served, before the hearing on the motion, verified responses to the requests for admission, and the Court finds that Arteaga's response is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Furthermore, Franco has submitted evidence of his verified response and a proof of service stating these responses were served on Defense counsel on May 13, 2026, which the Court also finds is in substantial compliance with Section 2033.220.

Neither Arteaga's nor Franco's

late-submitted responses contain any objections.

The Court notes that neither

Arteaga nor Franco have provided any explanation as to why their responses were not timely served. Thus, because there has been no demonstration that Plaintiffs' respective failures to timely serve responses were due to inadvertence, mistake, or excusable neglect, both Plaintiffs have waived any objection to the requests for admissions. (Code Civ. Proc., § 2033.280, subd. 2(a).) 2 Any objection raised by either Plaintiff to Defendant's requests will therefore be disregarded.

Because both Plaintiffs have

served verified, objection-free, code-compliant responses prior to the hearing date on this motion, Defendant's motion to deem the genuineness of documents and the truth of matters specified in the requests as to Plaintiffs Arteaga and Franco is DENIED.

b.

Request

for Monetary Sanctions

The Court must impose a monetary

sanction on the party or attorney whose failure to serve timely 2 requests for admission responses 2 necessitated 2 the motion. 2 (Code Civ. Proc., § 2033.280, subd. 2(c).)

In reply to Arteaga's opposition,

Defense counsel requests monetary sanctions in the amount of \$1,240, comprised

of 2.5 hours for preparation of the motion, 1.5 hours preparing the reply, expected additional time required to attend the hearing on this motion, and \$60 for filing the motion. (Reply, p. 3:8-13; Warner Decl. re Arteaga, ¶ 7.) Defense counsel's associate billing rate for this matter is \$295 per hour.

The Court notes that Defendant did not request monetary sanctions against either Plaintiff in its moving papers, and no accounting has been provided as to sanctions against Franco. However, monetary sanctions are mandatory when a Plaintiff's failure to timely serve responses necessitates a motion. The Court also notes that the motions and declarations filed as to both Plaintiffs are substantively the same, short in length, and substantively rely only on the controlling statutory authority with little research involved.

While no accounting as to the motion brought against Franco has been provided, the Court finds the billing rate reasonable, and finds 3.0 hours for the preparation of both motions reasonable given that both motions are substantively the same. Given the brevity and simplicity of Defendant's reply to Arteaga's opposition, the Court finds one hour of work for preparation is reasonable. The Court also notes the \$60 filing fee in bringing the present motion.

Accordingly, monetary sanctions are awarded to Defendant against Plaintiffs in the amount of \$1180.00. Each Plaintiff shall tender half of this amount within 30 days of this order.

V.

Conclusion

Defendant Farmers Insurance
Exchange's Motion for Order Deeming Matters Admitted as to Plaintiff Kisai
Franco is DENIED.

Defendant Farmers Insurance
Exchange's Motion for Order Deeming Matters Admitted as to Plaintiff Luis
Arteaga is DENIED.

The request for sanctions is

GRANTED.

Plaintiffs Kisai Franco and Luis

Arteaga are each ordered to pay \$590 in monetary sanctions to Defendant within 30 days of this Order.